SUBCHAPTER J—MORTGAGE INSURANCE FOR NURSING HOMES

PART 232—NURSING HOMES MORTGAGE INSURANCE

Subpart A—Eligibility Requirements

In § 232.61 paragraph (d) is amended to read as follows:

§ 232.61 Equity requirements.

* * * * *

(d) *Letter of credit.* The mortgagee may accept, in lieu of a cash deposit required by paragraphs (a), (b)(1) and (b)(3), an unconditional irrevocable letter of credit issued to the mortgagee by a banking institution. In the event a demand under the letter of credit is not immediately met, the mortgagee shall forthwith provide cash equivalent to the undrawn balance thereunder.

Section 232.62 is amended to read as follows:

§ 232.62 Advance amortization requirements.

If prior to the beginning of amortization net income, as defined by the Commissioner, is received as a result of the operation of the project, such net income, to the extent determined by the Commissioner, shall be applied in one or more of the following ways:

(1) To advance amortization.

(2) To offset the cost of approved capital improvements.

(3) To be deposited in the reserve fund for replacement and to be held as a reserve in addition to the monthly deposits required by the regulatory agreement. In addition to being applicable to commitments issued on or after December 3, 1963, the provisions of this subparagraph shall be applicable to commitments outstanding on such date where the mortgage has not received final endorsement.

(Sec. 211, 52 Stat. 23; 12 U.S.C. 1715b. Interpret or apply sec. 232, 73 Stat. 663; 12 U.S.C. 1715w)

SUBCHAPTER T—MILITARY AND ARMED SERVICES HOUSING MORTGAGE INSURANCE

PART 803—ARMED SERVICES HOUSING—MILITARY PERSONNEL

Subpart B—Contract Rights and Obligations

In Part 803 in the table of contents the pertinent section heading is amended to read as follows:

Sec.
803.253 Waiver of adjusted premium and termination charges.

Section 803.253 is amended to read as follows:

§ 803.253 Waiver of adjusted premium and termination charges.

If the mortgage is prepaid prior to maturity or the insurance contract is voluntarily terminated, no adjusted premium or termination charge shall be required.

(Sec. 807, 69 Stat. 651; 12 U.S.C. 1748f. Interprets or applies sec. 803, 69 Stat. 647, as amended; 12 U.S.C. 1748b)

Issued at Washington, D.C., December 3, 1963.

[SEAL] PHILIP N. BROWNSTEIN,
Federal Housing Commissioner.

[F.R. Doc. 63-12701; Filed, Dec. 6, 1963; 8:47 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 3277]

[Misc. 1727992]

ARKANSAS

Revoking Executive Order No. 7951 of August 12, 1938

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 7951 of August 12, 1938, which revoked Executive Order No. 6964 of February 5, 1935, so far as it affected the following described land, and which withdrew it for use by the State of Arkansas as a site for a forest-fire lookout tower, is hereby revoked:

FIFTH PRINCIPAL MERIDIAN

T. 6 N., R. 14 W.,
Sec. 27, W½NW¼SW¼.

Containing 20 acres.

2. The land is hereby restored to the operation of the public land laws, effective at 10:00 a.m. on January 8, 1964, subject to valid existing rights, and requirements of applicable law, and the provisions of existing withdrawals. Applications received at or prior to 10:00 a.m. on January 8, 1964, shall be considered as simultaneously filed at that time. Those thereafter received shall be considered in the order of filing.

3. The land has been open to applications and offers under the mineral leasing laws and to location for metalliferous minerals. It will be open to location for non-metalliferous minerals beginning at 10:00 a.m. on January 8, 1964.

4. It is the intent of this order to reembrace the lands in the withdrawal made by Executive Order No. 6964 of February 5, 1935, immediately upon the date hereof.

Inquiries concerning the land should be addressed to the Manager, Land Office, Bureau of Land Management, Washington, D.C.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

DECEMBER 3, 1963.

[F.R. Doc. 63-12673; Filed, Dec. 6, 1963; 8:46 a.m.]

[Public Land Order 3278]

[Wyoming 0175620]

WYOMING

Withdrawing Public Lands for Reclamation Purposes

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, and by virtue of the authority contained in section 3 of the Act of June 17, 1902 (32 Stat. 388; 43 U.S.C. 416), it is ordered as follows:

Subject to valid existing rights, the following-described public lands are hereby withdrawn from all forms of appropriation under the public land laws, including the mining but not the mineral leasing laws and reserved under jurisdiction of the Bureau of Reclamation as follows:

(a) In connection with the construction, operation and maintenance of the Seedskadee Project:

SIXTH PRINCIPAL MERIDIAN

T. 22 N., R. 111 W.,
Sec. 4, lot 5 and SE¼NE¼.
T. 23 N., R. 111 W.,
Sec. 33, E½.
T. 24 N., R. 112 W.,
Sec. 10, S½SW¼ and SE¼;
Sec. 11, SW¼ and SW¼SE¼.

(b) For use by the National Park Service for construction of access roads to public recreation areas in connection with the Fontenelle Reservoir:

T. 24 N., R. 112 W.,
Sec. 27, N½N½.

The areas described aggregate 1,000.25 acres.

The withdrawal made by this order does not alter the applicability of the public land laws governing the use of the lands under lease, license, or permit, or governing the disposal of their mineral and vegetative resources other than under the mining laws.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

DECEMBER 3, 1963.

[F.R. Doc. 63-12674; Filed, Dec. 6, 1963; 8:46 a.m.]

[Public Land Order 3279]

[Utah 0113225]

UTAH

Withdrawing Lands for Use of Department of the Army for Military Purposes

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Subject to valid existing rights, the following-described public lands are hereby withdrawn from all forms of appropriation under the public land laws, including the mining and mineral leasing laws, and reserved for use of the Department of the Army for construction and operation of a Ballistic Missile Re-entry